



STANDING ORDER NO. L&O/71/2024

MAINTENANCE OF FIRST INFORMATION REPORT (FIR) REGISTER, UPLOADING OF FIR ON DELHI POLICE WEBSITE AND PROCEDURE FOR SUPPLY OF COPY OF FIR TO ACCUSED

1. INTRODUCTION

At the time of introduction of Common Integration Police Application (CIPA), the Director, NCRB, MHA (GoI) had recommended for implementation of Integrated Investigation Forms (including the FIR Form) to improve the quality of information in Police Stations records and to bring uniformity in maintenance of criminal records. In this regard, Hon'ble Lieutenant Governor of Delhi issued directions vide notification No. F.13/13/98/HP-I/Estt./55-74, dated 05.01.2001 and the above-mentioned integrated forms were adopted in the Police Stations of Delhi. Accordingly, a notification was circulated vide PHQ's Circular No. 34/C&T (AC- I) dated 21.06.2001 to all concerned. While implementing Crime and Criminal Tracking Network & Systems (CCTNS), the same format was adopted. Therefore, following guidelines are being issued through this standing order.

2. APPLICABILITY

The directions issued in this Standing Order will be applicable to the districts as well as other Units having Police Stations. All Districts, Spl. Cell, Crime Branch, EOW, SPUWAC, Vigilance, Metro and IGI Airport shall ensure proper compliance of the guidelines issued vide this SO.

3. GENERAL INSTRUCTIONS FOR MAINTENANCE OF FIRST INFORMATION REPORT REGISTER

- 3.1 After the development of the software namely 'Common Integrated Police Application' (CIPA), the First Information Reports (FIRs) were being generated through the computer in all the Police Stations. Subsequently, the Crime and Criminal Tracking Network & Systems (CCTNS) replaced CIPA/CCTNS includes various modules related to investigation of cases including registration of FIRs.
- 3.2 The First Information Report Register shall be a folder of Integrated Investigation Form-1 (IIF-1). This Register should be

maintained digitally in the CCTNS. The copy of original statement/tehrir shall be scanned and kept at CCTNS along with FIR Register. However, till the requisite system is put in place in this regard, following procedure may be adopted:-

- 3.2.1 A folder consisting of 50 numbers of printouts of computer-generated FIRs along with the photocopy of the original statement/Tehrir attested by the Duty Officer should be maintained. Each FIR shall bear an annual serial number in each Police Station for each calendar year. The FIRs in the above folder shall be placed in sequence as per the FIR Number.
- 3.3 The Duty Officer shall prepare requisite number of copies of FIR by computer or with the help of Xerox/Photostat from the original computer-generated FIR for supply to the complainant/informant free of cost. The copy of the FIR shall be sent forthwith to the Illaka Magistrate and supervisory officers. Provided that, the copies of zero FIRs are not required to the Illaka Magistrate as these zero FIRs are not being investigated by the SHO.
- 3.4 The original statement/Tehrir of the complainant shall be placed in the judicial file. As already mentioned at point 3.2/3.2.1 above, the copy of statement/tehrir of each FIR shall be placed in the FIR register along with the printout of the said FIR.
- 3.5 The FIR Index should be updated in the CCTNS digitally from time to time and the print-out shall be taken from the CCTNS system at the end of investigation and shall be appended with the FIR in the FIR register. Other and subsequent events thereafter shall be recorded manually in the INDEX.
- 3.6 It shall be the duty of the MHC(R) and the SHO, including Inspector (Law & Order)/Inspector (Investigation) to keep the Index of the FIRs up-to-date and complete in all respect. The visiting supervisory officers shall also examine this Index Form to ensure that the investigation of the case is being done in a time-bound manner and that the necessary records have also been built up in respect of accused, arrest, sureties, search and seizure, case properties, case diaries, search slips etc.

4. REGARDING UPLOADING OF FIR ON THE WEBSITE OF DELHI POLICE [HTTPS://WWW.DELHIPOLICE.GOV.IN](https://www.delhipolice.gov.in)

Uploading of FIRs:

- 4.1 The Supreme Court in Writ Petition (Crl.) No. 68 of 2016 in 'Youth Bar Association of India Vs. Union of India and Others' and Delhi High Court in Writ Petition (Crl) No. 468/2010 in the matter of 'Court on its own motion Vs State', certain directions were passed to upload the FIR on website and concept of sensitive and non-sensitive FIR was evolved.

- 4.2 Broadly for the purpose of uploading the FIR on Delhi Police website, the cases have been divided in two categories- sensitive cases and non-sensitive cases. All non-sensitive FIRs shall be uploaded on the Delhi Police website within a period of 24 hours of lodging of FIR.
- 4.3 Sensitive cases are those cases, which have been decided by the Dy. Commissioner of Police as sensitive and these cases are neither to be uploaded on the Delhi Police Website nor the copy should ordinarily be provided to the accused/applicant. Apart from this, the word 'sensitive' would also include concept of privacy depending upon the nature of the FIR.
- 4.4 Based on the judgment passed by Supreme Court in Writ Petition (Crl.) No. 68 of 2016 in 'Youth Bar Association of India Vs. Union of India and Others' and Delhi High Court in Writ Petition (Crl) No. 468/2010 in the matter of 'Court on its own motion Vs State', following guiding principles are to be taken into account by the Dy. Commissioner of Police the FIRs should be treated as sensitive and not to be uploaded on the website:-
- a) Cases registered Under Section 64, 65, 66, 67, 68, 69, 70 & 71 of BNS as the disclosure of identity of victim in such cases is a punishable offence Under Section 72 of BNS.
 - b) Cases involving a child in conflict with law or a child in the need of care and protection as the Section 74 of The Juvenile Justice (Care & Protection of Children) Act, 2015 prohibits disclosure of identity of any such child. Thus, FIR of cases registered under POCSO Act, kidnapping cases and cases registered under The Juvenile Justice (Care & Protection of Children) Act, 2015 should not be disclosed.
 - c) Cases of kidnapping or abduction for ransom or murder (section 140 of the BNS) as its disclosure may be dangerous to the life of kidnapped victim.
 - d) Cases in which desperate criminals/gangsters are involved or in cases where the uploading of FIR would lead to disclosing the names and details of the witnesses or complainant that may endanger their life or property.
 - e) Other serious cases in which one accused has been arrested while others may be at large. Since the FIR may contain the names of complainant, eye-witnesses etc., there may be chances of undue advantage being taken by the accused still at large to continue to evade arrest or his/their becoming a threat to the complainant or eye-witnesses etc.
 - f) Cases relating to terrorists and cases in which the contents of the FIR may deal with the issues of national security.
 - g) Cases such as those registered under the Official Secrets Act where disclosure of information would be prejudicial to the interest of the State.

- h) Cases in which the nature of FIR is such that it is, in the opinion of the Deputy Commissioner of Police, sensitive for the reason of concept of privacy or otherwise. For instances, cases registered u/s 74-79 of BNS related to outraging the modesty of women, sexual harassment, voyeurism, disrobing, stalking, eve-teasing etc.
 - i) In any other case which may prejudice investigation and circumvent criminal justice system.
- 4.5 In sensitive cases as enumerated above, SHO would bear the onus to send a specific report along with the copy of FIR immediately after its registration for seeking the approval of the DCP to declare such FIR as sensitive and not to upload the same on Delhi Police Website.
- 4.6 The decision to declare an FIR as sensitive and not to upload the copy of the FIR on the website of Delhi Police needs to be duly recorded. Further, this decision shall not be taken by an officer below the rank of Deputy Commissioner of Police. A decision so taken by the Deputy Commissioner of Police shall also be duly communicated to the Area Magistrate.

5. REGARDING SUPPLY OF COPY OF FIR TO THE ACCUSED

- 5.1 Supply of copy of the FIR to the accused has to be done in accordance with the judgment passed by the Hon'ble Supreme Court of India in W.P. (Crl.) No. 68/2016, titled as '**Youth Bar Association of India Vs. Union of India &Ors.**', for which, the following procedure shall be followed:-

5.1.1 Non-sensitive cases

- a) An accused who has reason to suspect that he has been roped in a criminal case and his name may be finding a place in a First Information Report, may submit an application through his Representative/Agent/ Parokar for supply of a certified copy before the concerned police officer in the Police Station or before the Single Window already existing in the offices of the Dy. Commissioners of Police (during office hours on all working days) along with a fee of Rs. 25/- (Rupees Twenty Five only) in cash or through Pay Order or Demand Draft payable to Dy. Commissioner of Police of the concerned district upto 4 pages of FIR and Rs.10/- (Rupees Ten only) for every additional page. In Police Stations, cash and pay order or demand draft will be collected by Malkhana under a proper receipt.
- b) In case the application for getting the copy of FIR on behalf of the accused is submitted in the Police Station, the Duty Officer shall acknowledge the receipt of such application by putting the stamp of the Police Station, Diary Number, date and time of receipt along with his/her full signatures and hand over one copy to the applicant. The Duty Officer then shall immediately

submit this application before the SHO. The SHO would trace the said FIR and supply a copy of FIR to the applicant.

- c) In case, the application for getting the copy of FIR is submitted to the Single Window of the DCP office, the concerned clerk shall on receipt of the same acknowledge it with the stamp of the district/Unit office with diary number, date and time of receipt along with his full name and signatures. One copy of the acknowledgement will be handed over to the applicant. The application shall then be submitted to the District Record Cell in the office of Dy. Commissioner of Police.
- d) The DCP should direct the concerned SHO to supply the copy of FIR duly stamped with the official stamp with the words '**Copy for the accused**' on each page, within 24 hours of the receipt of such application or refuse the applicant in writing for supply of copy of FIR along with the reasons assigned for refusing the same. In case the FIR asked for does not exist or could not be traced in the Record Cell or Police Station due to insufficient information, the same should be communicated to the applicant.

5.1.2 Sensitive Cases

- i. In case, the accused files an application for supply of copy of the sensitive FIR, the SHO would immediately send a specific report along with the copy of FIR to the DCP seeking his refusal to supply of the copy of the FIR
- ii. DCP will decide whether a copy of FIR should be supplied to the accused or refused being sensitive in nature, including concept of privacy. The reasons to refuse the supply of FIR would be recorded in writing by the DCP.
- iii. All the FIRs which are decided to be refused to be supplied being sensitive in nature shall be marked/stamped as 'Sensitive Case'.

The communication for refusal to supply a FIR should also mention that the applicant can make a representation against such orders to the Review Committee as constituted by the Commissioner of Police, Delhi.

5.2 Constitution of Review Committee

- a) In Pursuance of Hon'ble Delhi High Court order dated 6th December, 2010 in WP (CrI.) No. 468/2010, the Commissioner of Police, Delhi has constituted a Committee of the following officers to deal with the grievances relating to the decision of the District/Unit/ Dy. Commissioners of Police refusing supply of copy of an FIR to the accused person: -

Spl/ CP Vigilance, Delhi	Chairman
Jt. CP or Addl. CP/Vigilance, Delhi	Member
Jt. CP or Addl. CP/Crime, Delhi	Member

- b) The Committee shall examine all representations received in this regard and take decision within 3 working days from the date of receipt of a representation and communicate the decision to the aggrieved person and concerned DCP.. In cases wherein decisions have been taken not to give copies of the FIR being sensitive in nature, it will be open to the accused/his authorized representative/parokar to file an application for grant of certified copy before the Court to which the FIR has been sent.

6. DESTRUCTION OF RECORDS

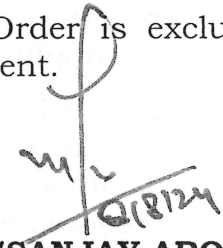
As per SO No. Crime/24/2022 regarding disposal of certain Records at the Police Stations and CCTNS, Register No. 1 – FIR is a permanent record and CCTNS Records to be archived after 5 years from the date of entry.

7. SUPERSESSSION CLAUSE

This Standing Order supersedes the previous Standing Order No. L&O/71/2022 issued vide No.30851-31000 /Record Branch/PHQ dated Delhi, the 30.05.2022.

8. DISCLAIMER

It is made clear that this Standing Order is exclusively for internal smooth functioning of Police Department.


(SANJAY ARORA)
COMMISSIONER OF POLICE:
DELHI

No. 7151-7300/Record Branch/PHQ dated Delhi, the 8/8/24.

Copy forwarded to:-

1. All Special Commissioners of Police, Delhi.
2. All Joint Commissioners of Police, Delhi including Jt. Director, Delhi Police Academy, Delhi/New Delhi.
3. All Additional Commissioners of Police, Delhi.
4. OSD to C.P., Delhi.
5. All Deputy Commissioners of Police, Districts/Units including PHQ, C.P. Sectt., FRRO and Deputy Director/Delhi Police Academy, Delhi/New Delhi.
6. DCP/HQ(IV)/PHQ with the direction to upload the Standing Order on Intra-DP.
7. LA to CP and FA to C.P., Delhi.
8. All ACsP/Insprs./PHQ.
9. PS/Reader to C.P., Delhi.
10. HAR/PHQ.
11. Inspr./Knowledge Center/PHQ.